

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Kenilworth Holdings LLC, 21-45 23rd St. LLC, 39-
12 62nd St. LLC, 42-59 Bowne St. LLC, 1369
College LLC, 593 Park Place Management Inc.,
43rd Street Associates LLC;

Petitioners-Plaintiffs,

DiFiore Realty LLC,

Intervenor-Petitioner,

-against-

New York City Rent Guidelines Board,

Respondent-Defendant,

New York State Tenants and Neighbors,
Metropolitan Council on Housing, Elisa Blynn,
Masseil Santos Mota, Magali R. Rivera Ubidia,
Raymuda Vazquez, Abundio Gonzalez, Central
Park Gardens Tenants' Association, Inc.,
P.A.'L.A.N.T.E. Harlem, and the Hamilton Heights
Tenant Association

Intervenor-Respondents-Defendants.

**STIPULATED PROTECTIVE
ORDER**

Subject to the Court's approval, the parties in the above-captioned litigation (this "Proceeding") hereby stipulate to the following protective order pursuant to CPLR 3103(a) which (i) limits the review, copying, dissemination, and filing of confidential personal identifying information, which shall mean personal email addresses (other than the name of the person(s)), personal phone numbers (other than the name of the person(s)), and personal mailing addresses (other than the name of the person(s)) ("Confidential PII" or the "Confidential PII Material"); and (ii) sets forth the procedures for designating and protecting such material (this "Stipulation and Order").

Designation of Discovery Materials as Confidential

1. This Stipulation and Order shall apply to and govern all information the disclosing party determines during discovery in this Proceeding contains Confidential PII Material. This includes documents produced in response to requests for production of documents.

2. When used in this Stipulation and Order, the phrase “disclosing party” shall refer to the parties to this Proceeding producing Confidential PII Material.

3. When used in this Stipulation and Order, the phrase “receiving party” shall refer to the parties to this Proceeding receiving Confidential PII Material from a disclosing party.

4. In the event any person having Confidential PII Material produced in this Proceeding receives a public record request, subpoena, or other process or order to produce such information, such receiving party shall promptly notify the disclosing party and provide it with a copy of the request; and shall make reasonable efforts to provide the disclosing party with reasonable time to object to such disclosure.

Who May Receive Confidential PII Material & Use Limitations

5. Any designated unredacted Confidential PII Material subject to this Stipulation and Order may be used only for purposes of this Proceeding and shall not be disclosed by the receiving party to anyone other than the Court for *in camera* inspection. To the extent all Confidential PII Material is appropriately redacted by either party in accordance with the terms of this Stipulation and Order, the limitations of this paragraph shall not apply. The disclosing party will make best efforts to ensure Confidential PII Material is redacted prior to production. To the extent any of the designated information is produced in unredacted form (i.e., the disclosing party did not redact the relevant Confidential PII), the receiving party shall ensure that all Confidential PII Material is

redacted prior to disclosure and notify the disclosing party prior to disclosure if additional redactions of any unredacted Confidential PII have been made.

Designating and Producing Confidential PII Material

6. The disclosing party or that party's counsel shall designate Confidential PII by marking such on the relevant documents or by producing said documents with appropriate redactions.

7. Any party who has designated information as "CONFIDENTIAL PII" may remove such information from the scope of that protection by notifying all other parties in writing. For the avoidance of doubt, the designation of Confidential PII does not preclude the receiving party from disclosing such document containing Confidential PII, as long as that document is redacted in accordance with the procedure set forth in paragraph 5 above.

Notice of Breach

8. If Confidential PII Material is disclosed to any person other than in the manner authorized by this Stipulation and Order, the person or party responsible for the unauthorized disclosure must within (5) days of discovering the disclosure bring all pertinent facts relating to such disclosure to the attention of the disclosing party and, without prejudice to any other rights and remedies of the parties or third parties, make every effort to prevent further disclosure by it or by the person who was the unauthorized recipient of such material and seek prompt return or destruction of the Confidential PII Material from the unauthorized recipient.

Clawback of Confidential PII Material

9. If at any time prior to the termination of this Proceeding, a producing party realizes that it has produced Confidential PII Material without designating it as such, the producing party may designate such material as "CONFIDENTIAL PII" by promptly notifying all parties in

writing. The notification must designate the Confidential PII Material as “CONFIDENTIAL” according to this Stipulation and Order. Such material will thereafter be treated as Confidential PII Material under the terms of this Stipulation and Order. The disclosing party shall provide the other parties with replacement versions of such Confidential PII Material and follow the designation and production requirements of paragraph 12 within (10) business days of providing such notice.

10. The receiving parties, within ten (10) business days of receiving the confidential designation notice above, regardless of whether the receiving parties agree with the claim of confidentiality shall: (a) destroy the Confidential PII Material or return it to the disclosing party, including any paper or electronic copies and replace it with the new version, and (b) treat as confidential any Confidential PII Material and/or which were generated by the receiving parties based upon such Confidential PII Material. If any additional Confidential PII Material is later discovered, they shall immediately also be treated as confidential. The receiving parties shall provide written assurance to the disclosing party that these actions have been completed within ten (10) days of receiving the confidential designation notice.

11. Nothing in this Stipulation and Order shall preclude any party from seeking additional or different relief to protect information that is proprietary, competitive, sensitive, or personal.

Rights, Limitations, and Modifications

12. A party’s compliance with the terms of this Stipulation and Order shall not operate as an admission by that party that any particular document or information is or is not (i) responsive, (ii) privileged, (iii) reflective of personally identifiable information; or (iv) admissible in this Proceeding.

13. Nothing in this Stipulation and Order overrides any attorney's ethical responsibilities to refrain from examining or disclosing materials that the attorney knows or reasonably should know to be privileged or contain Confidential PII and to inform the disclosing party that such materials have been produced. Nothing contained herein will prevent, limit, or restrict the parties hereto in any way from objecting to or asserting an immunity or privilege in any prior or subsequent litigation with respect to any material produced in this Proceeding. Nor is anything herein intended to limit a party's right, if any, to properly redact information that is privileged or otherwise protected prior to disclosure.

14. Nothing contained herein is intended to or shall serve to limit a party's right to conduct a review of documents and related information (including metadata) for responsiveness, privilege, personally identifiable information, and/or protected information before disclosure.

15. This Stipulation and Order may be changed only by further agreement of the parties in writing or by order of the Court and is without prejudice to the right of any party to seek modification or judicial relief of this Stipulation and Order by application to the Court on notice to the other party.

16. This Stipulation and Order shall remain in full force and effect until modified, superseded, or terminated either by consent of the parties or by order of the Court.

17. This Stipulation and Order shall not be construed to waive or diminish any right to assert a claim of privilege, relevance, over breadth, proportionality, or other grounds for not producing material requested during discovery, and access to all material (whether designated as "CONFIDENTIAL" or not) shall be granted only as provided by the discovery rules and other applicable law.

Severability

18. The invalidity or unenforceability of any provision of this Stipulation and Order shall not affect the validity or enforceability of any other provision of this Stipulation and Order, which shall remain in full force and effect.

Termination of the Litigation

19. This Stipulation and Order shall survive the termination of this Proceeding, including any and all appeals, and remain in full force and effect unless modified by an order of this Court. Within sixty (60) days of the termination of this Proceeding, including final appellate action or the expiration of time to appeal or seek further review, all Confidential PII Material that has been designated in accordance with all of the requirements of paragraph 12 and all copies, reproductions, summarizations, extractions, and abstractions thereof, shall be returned to the disclosing party or destroyed. At the conclusion of this 60-day period, counsel for each party shall provide to the other parties a certification stating that, to counsel's knowledge and belief, the party has either returned or made commercially reasonable efforts to destroy all Confidential PII Material in accordance with this Stipulation and Order.

20. This Court shall retain jurisdiction over all persons subject to this Stipulation and Order for so long as such persons have Confidential PII Material and to the extent necessary to enforce any obligations arising hereunder or to impose sanctions for any contempt thereof.

STIPULATED TO:

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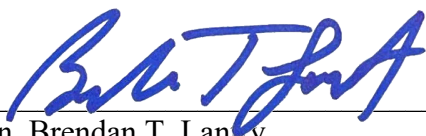
/s/ Rachel K. Moston

By: _____
Rachel K. Moston
Assistant Corporation Counsel

By: */s/ Randy M. Mastro* (p.p. Tamer Mallat) _____
Randy Mastro

SO ORDERED:

Dated: September 29, 2026
New York, New York



Hon. Brendan T. Lantry